

Ministry of Environment, Forest and Climate Change



New Solid Waste Management Rules Notified; To Come into Force from April 1, 2026

Four-Stream Segregation of Solid Waste at Source Made Mandatory; Clear Responsibilities Defined for Bulk Waste Generators

New Rules Provide for Environmental Compensation for Violations Based on Polluter Pays Principle

Online Tracking and Monitoring of Complete Solid Waste Management Process and Faster Land Allocation for Waste Processing under SWM Rules, 2026

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The Union Ministry of Environment, Forest and Climate Change has notified the Solid Waste Management (SWM) Rules, 2026, superseding the Solid Waste Management Rules, 2016. The rules have been notified under the Environment (Protection) Act, 1986 and will come into full effect from April 1, 2026. The revised rules integrate the principles of Circular Economy and Extended Producer Responsibility, with a specific focus on efficient waste segregation and management.

The rules provide for the levy of environmental compensation based on the 'Polluter Pays' principle for non-compliance, including cases of operating without registration, false reporting, submission of forged documents or improper solid waste management practices. The Central Pollution Control Board (CPCB) will prepare the relevant guidelines, while State Pollution Control Boards and Pollution Control Committees will levy the environmental compensation.

Four-stream Segregation of Solid Waste at Source

Four-stream segregation of solid waste at source has been made mandatory under the SWM Rules, 2026. Waste is required to be segregated into wet waste, dry waste, sanitary waste and special care waste.

Wet waste includes kitchen waste, vegetables, fruit peels, meat, flowers, etc., which shall be composted or processed through bio-methanation at the nearest facility. **Dry waste** comprises plastic, paper, metal, glass, wood and rubber, etc., and shall be transported to Material Recovery Facilities (MRFs) for sorting and recycling. **Sanitary waste** includes used diapers, sanitary towels, tampons

and condoms, etc., which shall be securely wrapped and stored separately. **Special care waste** includes paint cans, bulbs, mercury thermometers and medicines, etc., which shall be collected by authorised agencies or deposited at designated collection centres.

Clear definition of Bulk Waste Generators

Bulk Waste Generators include entities with a floor area of 20,000 square metres or more, or water consumption of 40,000 litres per day or more, or solid waste generation of 100 kg per day or more. These include central and state government departments, local bodies, public sector undertakings, institutions, commercial establishments and residential societies, among others. Bulk Waste Generators must ensure that the waste generated by them is collected, transported and processed in an environmentally sound manner. This provision is expected to significantly reduce the burden on urban local bodies and promote decentralised waste management. The rules also allow for the levy of user fees on waste generators as per the bye-laws of local bodies.

The new rules also introduce **Extended Bulk Waste Generator Responsibility (EBWGR)**, under which bulk waste generators are made accountable for the solid waste generated by them. Bulk Waste Generators are required to process wet waste on-site as far as possible or obtain an EBWGR certificate where on-site processing is not feasible. This framework aims to strengthen waste management practices, as bulk waste generators account for nearly 30 per cent of total solid waste generation.

Faster Land Allocation for Waste Processing and Online Monitoring of Complete Solid Waste Management

The rules introduce graded criteria for development around solid waste processing and disposal facilities to facilitate faster land allocation. A **buffer zone** is to be maintained within the total area allotted for facilities having an installed capacity exceeding 5 tonnes per day. The CPCB will develop guidelines specifying the size of the buffer zone and permissible activities within it, based on the facility's capacity and pollution load. This is expected to expedite land allocation for waste processing facilities by States and Union Territories.

The rules also provide for the development of a **Centralised Online Portal** to track all stages of solid waste management, including waste generation, collection, transportation, processing and disposal, as well as biomining and bioremediation of legacy waste dump sites. Registration and authorisation of waste processing facilities with local bodies and State Pollution Control Boards or Pollution Control Committees shall be carried out online through the portal developed by the CPCB.

Submission of reports by solid waste processing facilities shall also be undertaken online through the portal, **replacing multi-step physical reporting**. The rules mandate **audits** of all waste processing facilities. Audit reports are required to be uploaded on the centralised online portal.

Duties of Local Bodies and Material Recovery Facilities (MRFs)

Under the revised rules, local bodies are responsible for the collection, segregation and transportation of solid waste in coordination with MRFs which may also act as deposition points for e-waste, special care waste, sanitary waste and other waste streams for further processing. MRFs have been formally recognised as facilities for **sorting** of solid waste.

Local bodies have been encouraged to generate carbon credits. In addition, the department responsible for sanitation and solid waste management in rural areas in the State or Union Territory has been mandated to give special attention to peri-urban rural areas.

Use of Refuse Derived Fuel (RDF) by Industries

The new rules define Refuse Derived Fuel (RDF) as fuel produced by shredding and dehydrating municipal solid waste with high calorific value, primarily consisting of non-recyclable plastic, paper and textiles. Industrial units, including **cement plants and waste-to-energy plants** that currently use solid fuel, have been mandated to replace it with RDF. The fuel substitution rate will increase from the current 5 per cent to 15 per cent over a six-year period.

Restrictions on Landfilling and Remediation of Legacy Waste Dumpsites

The rules further strengthen restrictions on landfilling and address the remediation of legacy waste dumpsites. Landfills have been strictly restricted to **non-recyclable, non-energy recoverable waste and inert material**. Higher **landfill fees** have been prescribed for local bodies for sending unsegregated waste to sanitary landfills. The landfill fee for unsegregated waste will be higher than the cost of segregation, transportation and processing of segregated waste. The rules also mandate **annual audits of landfills** by State Pollution Control Boards, with landfill performance to be overseen by District Collectors.

The rules mandate **mapping and assessment of all legacy waste dumpsites** and provide for **time-bound biomining and bioremediation**, with quarterly progress reporting through the online portal.

Solid Waste Management in Hilly Areas and Islands

Special provisions have been introduced for solid waste management in hilly areas and islands. These include the levy of **user fees on tourists and regulation of tourist inflow by local bodies based on available waste management facilities**. Designated collection points will be established for non-biodegradable waste in such areas. Local populations will be encouraged to hand over waste to local bodies and discouraged from littering. Hotels and restaurants will undertake decentralised processing of wet waste in accordance with norms prescribed by SPCBs or PCCs.

The rules also provide for the establishment of Central and State-level Committees for Effective Implementation. At the State level or Union territory level, a committee chaired by the Chief Secretary of the State or Head of Union Territory Administration shall recommend measures to the Central Pollution Control Board for effective implementation of the rules.

Solid Waste Management Rules, 2026:

[https://egazette.gov.in/\(S\(xdpf55qwoxtnnwkqvmffeyba\)\)/ViewPDF.aspx](https://egazette.gov.in/(S(xdpf55qwoxtnnwkqvmffeyba))/ViewPDF.aspx)

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